		time"].) Defendant Carecar, Inc. shall obtain counsel within a reasonable time. Moving counsel shall give notice of this ruling.
103	**PIRIZ vs. CARECAR, INC.** **2022-01292639**	**1. Motion to Be Relieved as Counsel of Record** **2. Status Conference** Attorney Tamar G. Arminak of the law firm Arminak Law, APC's motion to be relieved as counsel of record for Defendant Carecar, Inc. is **GRANTED**, effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.) Moving counsel shall lodge with the Court an updated proposed order that lists in ¶ 7 updated information on the next scheduled hearing. **An order to show cause is set for October 15, 2026 at 9:30AM. in Department CX102**. At the hearing, the Court will strike Defendant Carecar, Inc.'s answer for its failure to appear through counsel unless it (1) substitutes in new counsel before the hearing or (2) appears at the hearing and shows good cause otherwise. (See *Merco Construction Engineers, Inc. v. Mun. Ct.* (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145, 1150 [same, and "court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time"].) Moving counsel shall give notice of this ruling.
104	**Barrera vs. KWK Trucking, Inc.** **2023-01349709**	**1.Motion for Leave to File Amended Complaint** **2. Case Management Conference** Plaintiff Luis Barrera's Motion for Leave to File First Amended Complaint is **DENIED in part and GRANTED in part.** (Code Civ. Proc. [CCP], §§ 473, subd. (a)(1), 576; Cal. Rules of Court [CRC], rule 3.1324.) **Legal Standards** **Procedural Requirements** California Rules of Court (CRC), rule 3.1324(a) requires that a motion to amend include a copy of the proposed amendment or amended pleading; identify by page, paragraph, and line number any additions to and

deletions from the prior pleading. Rule 3.1324(b) further requires a separate supporting declaration that specifies:

(1) The effect of the amendment;
(2) Why the amendment is necessary and proper;
(3) When the facts giving rise to the amended allegations were discovered; and
(4) The reasons why the request for amendment was not made earlier.

(CRC, rule 3.1324(b)(1)-(4).)

Merits

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . ." (Code Civ. Proc. [CCP], § 473, subd. (a)(1).) Further, "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, . . . may allow the amendment of any pleading . . . ." (CCP § 576.)

"The trial court has wide discretion in allowing the amendment of any pleading, and as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown." (*Record v. Reason* (1999) 73 Cal.App.4th 472, 486, internal quotes, brackets, & citations omitted.)

"[C]ourts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial," so long as "no prejudice is shown to the adverse party." (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes and citations omitted].) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.)

"If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Super. Ct.* (1959) 172 Cal.App.2d 527, 530.) Indeed, "judicial policy favors resolution of all disputed matters in the same lawsuit," and "it is irrelevant that new legal theories are introduced as long as the proposed amendments 'relate to the same general set of facts.'" (*Kittredge Sports Co. v. Super. Ct.* (1989) 213 Cal.App.3d 1045, 1047-1048, quoting *Hirsa v. Super. Ct.* (1981) 118 Cal.App.3d 486, 489.)

Leave to amend may be denied if the party seeking the amendment has been dilatory *and* the delay has prejudiced the opposing party. (*See Hirsa*, *supra*, 118 Cal.App.3d at p. 490.) Delay is most likely to result in prejudice warranting a denial of leave to amend "[w]here the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery." (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 488.)

"However, even if a good amendment is proposed in proper form, unwarranted delay in present it may—of itself—be a valid reason for denial." (*P&D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345, internal quotes omitted [affirming denial of leave to amend where movant offered no reason for 10-month delay in seeking leave to amend].)

Finally, although "the failure of a proposed amendment to state facts sufficient to constitute a cause or defense may support an order denying a motion to amend," this rule is most appropriately applied "in cases in which the insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment." (*Cal. Casualty General Insurance Co. v. Super. Ct.* (1985) 173 Cal.App.3d 274, 280-281.) Thus, for example, where "[t]he proposed amendment would [be] futile because it [i]s barred by the statute of limitations," "it is proper to deny leave to amend." (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230-231; see also *Yee v. Mobilehome Park Rental Review Bd.* (1998) 62 Cal.App.4th 1409, 1429.) Otherwise, "the better course of action" is to grant leave to amend the complaint "and then let the parties test its legal sufficiency in other appropriate proceedings" like a demurrer. (*Atkinson*, 109 Cal.App.4th at p. 760, citing *Kittredge*, 123 Cal.App.3d at p. 1048.)

Application

Plaintiff Barrera's PAGA Claim

The Court **DENIES in part** the instant motion **to the extent the proposed first amended complaint (FAC) seeks to add a PAGA claim by Plaintiff Barrera.**

First, the instant motion, as it applies to Barrera's PAGA claim, fails to satisfy CRC rule 3.1324(b)(3) and (4). On the element of when facts giving rise to the amended allegations were discovered, counsel's declaration acknowledges that notice of Barrera's PAGA claim was given to the LWDA on 9/9/2023. (ROA #72 [Park Decl.], ¶ 7.) Therefore, facts giving rise to the amended allegations to assert a PAGA claim by Barrera were discovered before the original complaint was filed on 9/14/2023. Yet counsel does not explain why Barrera is only now seeking to actually amend the complaint to assert his PAGA claim in this action.

Indeed, as early as 2/14/2024, Plaintiff represented to this Court in a case management statement that:

> On September 9, 2023, Plaintiff provided written notice to the LWDA and Defendant pursuant to Labor Code § 2698 et seq. (the Private Attorneys General Act of 2004 ("PAGA"). The sixty-five day notice period expired on or about November 13, 2023 and the

		LWDA did not take any action to investigate or prosecute this matter. Having exhausted the statutory time period to bring this action, Plaintiff intends to amend the Complaint to include a claim under PAGA. (ROA #18.) Yet counsel has not explained why Barrera waited over 2 years to seek leave to actually amend the complaint to assert Barrera's PAGA claim. Second, Plaintiff Barrera's PAGA claim is barred by the statute of limitations according to the face of the proposed FAC. The statute of limitations for a PAGA claim is one year. (Code of Civil Procedure [CCP], § 340(a).) "A statute of limitations begins to run when a cause of action has accrued, which is when all the elements of that cause of action have been satisfied." (*Williams v. Alacrity Solutions Group, LLC* (2025) 110 Cal.App.5th 932, 942, internal quotes omitted, review granted, *Williams v. Alacrity Solutions Group* (Cal. 2025) 334 Ca. Rptr.3d 45.) "[A] PAGA action accrues when the Labor Code violation last occurred; as applied here, when a PAGA plaintiff is no longer employed by the violator-employer, the violation last occurred (and the cause of action accrues) on the PAGA plaintiff's last day of employment." (*Id.*) Labor Code section 2699.3 provides, in relevant part: (a)(2)(A) The agency shall notify the employer and the aggrieved employee or representative by certified mail that it does not intend to investigate the alleged violation within 60 calendar days of the postmark date of the notice received pursuant to paragraph (1). Upon receipt of that notice or if no notice is provided within 65 calendar days of the postmark date of the notice given pursuant to paragraph (1), the aggrieved employee may commence a civil action pursuant to Section 2699. . . . (C) Notwithstanding any other provision of law, a plaintiff may as a matter of right amend an existing complaint to add a cause of action arising under this part at any time within 60 days of the time periods specified in this part. . . . (e) The periods specified in this section are not counted as part of the time limited for the commencement of the civil action to recover penalties under this part. "Section 2699.3, subdivision (a) evinces the Legislature's intent for workplace violations to be addressed expeditiously by setting a *tight timeline* for the LWDA to respond to the notice of alleged violations *and the plaintiff to thereafter file or amend a complaint*. The concomitant one-year statute of limitations emphasizes the Legislature's desire for quick

action on workplace violations." (*Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 840, emphases added.)

Here, the FAC alleges that Barrera worked for Defendant from approximately March 2017 to April 2023 (FAC, ¶ 8); that Barrera gave notice to the LWDA on 9/9/2023 (*id.* at ¶ 106); and that the LWDA has not indicated it intends to investigate Barrera's claims (*id.*).

As Barrera last worked for Defendant in April 2023, the statute of limitations on his PAGA claim expired one year later in April 2024. Although Barrera timely gave notice to the LWDA of his PAGA claim on 9/9/2023 before the expiration of the statute of limitations, that notice only tolled Barrera's statute of limitations for 65 days from the date of notice to await the LWDA's response. Thereafter, Barrera had another 60 days to file an amended complaint. Accounting for 65 days of tolling, the statute of limitations on Barrera's PAGA claim expired in or around June 2024.

Yet Barrera did not file the instant motion to seek leave to file the FAC until roughly two years later on 6/10/2026. Importantly, notice to the LWDA does not mean the statute of limitations applicable to "the commencement of the civil action to recover [PAGA] penalties" no longer applies. (See, e.g., *Arce v. The Ensign Group, Inc.* (2023) 96 Cal.App.5th 622, 630 [explaining that "because a would-be PAGA plaintiff can only bring her claim to court 65 days after submitting a prefiling notice to the LWDA, the statute of limitations is tolled for 65 days from the time the notice is submitted"]; *LaCour v. Marshalls of Cal., LLC* (2023) 94 Cal.App.5th 1172, 1185 ["An alleged aggrieved employee cannot file a PAGA action until after the aggrieved employee exhausts PAGA remedies by filing a notice with the LWDA, and the statute of limitations is tolled up to 65 days to give the LWDA a chance to respond to the notice"]; *Brown*, *supra*, 28 Cal.App.5th at p. 839, internal citations omitted ["Section 2699.3 also allowed plaintiff to amend her existing complaint to add a PAGA cause of action within 60 days of that [65]-day period. The [65]-day and 60-day periods were in addition to the one-year statute of limitations."].)

The relation-back doctrine does not save the claim. Under that doctrine, an amended complaint is deemed filed as of the date of the original complaint only if it "rest[s] on the same general set of facts," "involve[s] the same injury," and "refer[s] to the same instrumentality" as the original pleading. (*Brown*, *supra*, 28 Cal.App.5th at p. 841.) But the doctrine "cannot be used to frustrate the intent of the Legislature to require compliance with administrative procedures as a condition to filing an action," and "the rule of relation back does not operate to assign the performance of a condition precedent to a date prior to its actual occurrence." (*Esparza v. Safeway, Inc.* (2019) 36 Cal.App.5th 42, 60.) A PAGA plaintiff may not sue until both the LWDA notice is given and the 65-day review period has run. (Lab. Code, § 2699.3, subd. (a)(2)(A).) Accordingly, "an untimely PAGA claim may relate back to an earlier complaint only if the complaint was preceded by timely notice to the LWDA" and the earlier complaint could itself have asserted the PAGA claim. (*Esparza*, *supra*, 36 Cal.App.5th at pp. 60-62; *Brown*, *supra*, 28 Cal.App.5th at pp. 841-842 [remanding for

		consideration whether later-added PAGA claims relate back "solely as to the adequately noticed and alleged" original PAGA claim].) Barrera's original complaint, filed September 14, 2023, asserted no PAGA cause of action; it pleaded only individual and class wage claims and a claim for unfair competition. And because Barrera filed that complaint just five days after serving his LWDA notice — before the 65-day review period had run — he could not lawfully have commenced any PAGA action as of that date. Relating a PAGA claim back to September 14, 2023 would therefore "assign the performance of a condition precedent to a date prior to its actual occurrence," which the relation-back doctrine does not permit. (*Esparza*, *supra*, 36 Cal.App.5th at p. 60.) *Esparza* is directly on point: it refused to relate an untimely PAGA claim back to an earlier "complaint raising no PAGA claim and alleging no prefiling notice to the LWDA," because doing so would improperly use relation back "to frustrate the intent of the Legislature to require compliance with administrative procedures as a condition to filing an action." (*Id.* at 62-63.) *Hutcheson v. Superior Court* (2022) 74 Cal.App.5th 932 does not compel a different result. *Hutcheson* held that relation back "may apply" to permit the substitution of one aggrieved employee for another as the named PAGA plaintiff, where the *original complaint already asserted a PAGA claim* supported by timely, adequate LWDA notice, and the substitute plaintiff was an aggrieved employee with standing when that complaint was filed. (*Id.* at 936, 940-942.) The doctrine there related the amended pleading to an anchor PAGA claim that had itself satisfied PAGA's exhaustion prerequisites and was validly pending. (*Id.* at p. 941.) Here there is no anchor: Barrera's original complaint pleaded no PAGA claim, and it could not have asserted one when filed. Nor is *Hutcheson*'s equitable concern present — that barring relation back would let an employer "escape" penalty exposure it already faced under an existing PAGA complaint (*id.* at 944) — because Defendant never faced PAGA penalty exposure under Barrera's original damages complaint. Permitting relation back here would not preserve existing exposure but create new exposure years after the limitations period closed. Nor should the relation back doctrine be used to frustrate the Legislature's "intent for workplace violations to be addressed expeditiously by setting a *tight timeline* for the LWDA to respond to the notice of alleged violations *and the plaintiff to thereafter file or amend a complaint*" as reflected in Labor Code sections 2699.3, subdivisions (a)(2)(A), (a)(2)(C), and (e). (*Brown*, *supra*, 28 Cal.App.5th 824, 840, emphases added.) Notably, section 2699.3(a) authorizes the plaintiff to "commence" the PAGA action "only after" expiration of the 65-day notice period. This legislative directive that a PAGA action "shall commence only after" exhaustion reflects an intent that such an action can have no beginning date earlier than the date of filing upon expiration of the notice period. Unfortunately, the PAGA action Barrera now seeks to "commence" would be time barred—or more colloquially—it would be "over before it started." Because Barrera's proposed PAGA cause of action is time-barred on the face of the proposed first amended complaint, and relation back does not

apply, the amendment is futile as to that claim. (*Foxborough*, *supra*, 26 Cal.App.4th at pp. 230-231; *California Casualty*, *supra*, 173 Cal.App.3d at pp. 280-281.) **Leave to amend to add Plaintiff Barrera's PAGA claim is DENIED.**

Moreover, as discussed above, Plaintiff's counsel has offered no explanation for Barrera's delay in seeking to assert his PAGA claim in this action, which fails to comply with CRC rule 3.1324(b)(4). As noted above, unwarranted delay and failure to explain delay are also appropriate reasons to justify a denial of leave to amend. (*P&D Consultants*, *supra*, 190 Cal.App.4th at p. 1345.)

Claims of the 4 New Proposed Named Plaintiffs

Defendant's opposition to the instant motion also raises the following arguments as to why the Court should deny Plaintiff Barrera leave to add the 4 new proposed named plaintiffs:

(1) "Relation back independently fails as to the four proposed plaintiffs" as to their PAGA claim (ROA #86 [Opp.], p. 10);

(2) The new plaintiffs' PAGA claim falls under a different PAGA regime than Barrera's PAGA claim, given PAGA's reform in 2024; therefore, all 5 plaintiffs do not share a common PAGA claim, and they are misjoined (*id.* at pp. 12-14);

(3) The new plaintiffs' PAGA notices fail the "facts and theories" requirement of Labor Code section 2699.3(a)(1)(A) (*id.* at pp. 11-12);

(4) The new plaintiffs lack reformed-PAGA standing because of deficiencies with their allegations in the FAC (*id.* at p. 13);

(5) The new plaintiffs signed an arbitration agreement (*id.* at pp. 14-15), and those arbitration agreements contain class waivers (*id.* at pp. 15-17); and

(6) Defendant will be substantially prejudiced by the addition of 4 new plaintiffs and their claims, including their PAGA claim, as this will require extensive new discovery and motion practice (*id.* at p. 17).

The Court finds Defendant's **argument #1** to be inapposite. Although argument #1 is directed at the 4 new plaintiffs, it appears under the heading "Barrera's Individual PAGA Claim Is Time-Barred and Does Not Relate Back." (*Id.* at pp. 9-11.) Defendant's entire argument on the 4 new plaintiffs is as follows:

> Relation back independently fails as to the four proposed plaintiffs. There is no relation back where a new plaintiff seeks to enforce an independent right that is, a different claim than the one alleged in the original complaint. Under that rule, "where the additional party plaintiff, joining in a suit brought before the statute of limitations

> has run against the original plaintiff, seeks to enforce an independent right, the amended pleading does not relate back, so as to render substitution permissible ….” *Diliberti v. Stage Call Corp.* (1992) 4 Cal.App.4th 1468, 1471, quoting *Bartalo v. Superior Court* (1975) 51 Cal.App.3d 526, 533. The proposed plaintiffs worked at four different facilities over periods spanning 2013 to 2026 and gave notice under a different statutory regime; theirs are independent claims, not Barrera's injury. And an amendment adding a new PAGA plaintiff is permissible only where that plaintiff independently satisfies PAGA's prerequisites — standing, notice, and the statute of limitations. *Hargrove v. Legacy Healthcare, Inc.* (2022) 80 Cal.App.5th 782, 791.

For context, the full quote from *Diliberti* that Defendant references in its opposition is as follows: "The general rule governing the permissibility of the bringing in of additional plaintiffs after the period of the statute of limitations has elapsed is that where the additional party plaintiff, joining in a suit brought before the statute of limitations has run against the original plaintiff, seeks to enforce an independent right, the amended pleading does not relate back, so as to render substitution permissible." (*Diliberti*, *supra*, 4 Cal.App.4th at p. 1471, internal quotes & ellipses omitted.)

Thus, the quoted rule from *Diliberti* applies when the statute of limitations has expired for a new plaintiff but not for the original plaintiff. Here, the situation is *opposite*: As discussed above, as to the PAGA claim, the statute of limitations has expired as to Barrera, the original plaintiff—but it has not expired as to the new plaintiffs, whose employment with Defendant all ended in August 2025 to January 2026, and they all timely gave their PAGA claim notices to LWDA in 2025 to 2026 *and* sought to file their PAGA claim in a court action within one year of the end of their employment with Defendant. Therefore, the 4 new plaintiffs need not rely on the "relation back" doctrine to allege timely PAGA claims. Accordingly, Defendant's argument that "[r]elation back fails independently as to the four proposed plaintiffs" is inapposite.

As part of this relation-back argument, Defendant also cites *Hargrove*, which involved an original PAGA plaintiff who passed away and a motion for leave to amend the complaint to substitute a new PAGA plaintiff who began working for the defendant-employer only after the original complaint was filed. (*Hargrove*, *supra*, 80 Cal.App.5th at p. 785.) The court held that the new plaintiff did not have standing to substitute in because she was not an aggrieved employee at the time the original plaintiff gave notice to the LWDA. (*Id.* at pp. 791-792.)

Defendant cites *Hargrove* in support of the proposition that "an amendment adding a new PAGA plaintiff is permissible only where that plaintiff independently satisfies PAGA's prerequisites — standing, notice, and the statute of limitations." (Opp., p. 11.) This proposition is not controversial, and as noted above, since the 4 new plaintiffs all ended their employment with Defendant within one year of giving notice to the LWDA *and* seeking to assert their PAGA claim in this court action by way

		of filing this motion for leave to amend, the 4 new plaintiffs all seem to independently satisfy PAGA's prerequisites. Plaintiff has not made any argument thus far that they need not satisfy these prerequisites or that any particular plaintiff is entitled to assert claims for which that plaintiff does not meet PAGA's prerequisites. Therefore, the Court finds Defendant's argument #1 to be inapposite. As for Defendant's **argument #2** that joining the new plaintiffs' PAGA claims with Barrera's PAGA claim in this case would result in different PAGA claims spanning different PAGA regimes (pre- and post-2024) (Opp., pp. 12-13), that argument is moot because, as explained above, the Court denies the instant motion to the extent it seeks to add a PAGA claim by Barrera. Defendant's **arguments #3 and #4** both contend that there are deficiencies with the new plaintiffs' allegations. Argument #3 relates to the plaintiffs' LWDA notices, and argument #4 relate to the allegations of the FAC. These are both merits-based arguments that would be better addressed in other appropriate proceedings after the FAC has been filed, particularly since further amendments may cure the alleged deficiencies. (See *Atkinson*, *supra*, 109 Cal.App.4th at p. 760, citing *Kittredge*, *supra*, 123 Cal.App.3d at p. 1048.) Defendants' **argument #5** based on alleged arbitration agreements is better addressed in other appropriate proceedings as well, such as a motion to compel arbitration. As for **argument #6** on Defendant's alleged prejudice, this argument is supported by a single sentence in defense counsel's declaration: "Based on the procedural history above, the proposed amendment — adding four plaintiffs who worked at different facilities during different time periods, together with a representative PAGA claim — would require KWK to reopen and substantially expand discovery, including additional plaintiff depositions, facility-specific records, and PAGA-wide data, and to defend penalty exposure under two different PAGA statutory regimes." (ROA #86 [Smith Decl.], ¶ 9.) Ultimately, this argument amounts to little more than Defendant must defend against claims asserted against it, which does not justify denial of leave to amend. (See *S.C. v. Doe 1* (2025) 115 Cal.App.5th 365, 384, fn. 11 [rejecting defendant's argument that granting motion for leave to file amended complaint would require defendant to "spend additional resources and time investigating the new time period" when defendant already "spent a considerable amount of time and resources investigating" the time period alleged in the original complaint, noting that the court is "not convinced the burden of additional costs would justify denial given a trial court's authority to fashion orders alleviating such concerns].) Therefore, the Court **GRANTS** the instant motion for leave to amend **to the extent the FAC proposes to add the 4 new plaintiffs and their claims.**

		Plaintiff is **ORDERED** to file and serve a revised proposed FAC omitting Plaintiff Barrera's PAGA claim. The revised proposed FAC must be filed within 3 court days of this ruling and served on Defendant within 30 days of this ruling. Plaintiff shall give notice.
105	**Vu vs. Pure Nails And Hair LLC** **2025-01498773**	**1.Motion for Leave to Amend/Demurrer** **2. Case Management Conference** The motion technically on calendar is Defendants Pure Nails and Hair, LLC; Meridian Spa and Salon, LLC; Crest Spa and Salon, Inc.; Pure Nail Bar, LLC; and Recherchela, LLC's motion for leave to amend its demurrer. This motion is **GRANTED**, and the amended demurrer is deemed timely filed on 3/25/2026. *The Court also rules as follows on the substance of the amended demurrer:* Defendants Pure Nails and Hair, LLC; Meridian Spa and Salon, LLC; Crest Spa and Salon, Inc.; Pure Nail Bar, LLC; and Recherchela, LLC's demurrer to Plaintiff Thuy Vu's complaint is **OVERRULED.** (Code Civ. Proc. [CCP], § 430.10, subds. (e), (f).) Defendants shall file and serve their answers, if any, within 14 days. **Legal Standard** On a demurrer, a complaint "must be liberally construed, with a view to substantial justice between the parties." (CCP § 452; *see also Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 996.) "A demurrer tests the legal sufficiency of the factual allegations in a complaint." (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal.App.5th 989, 996.) The court must determine "whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense." (*Ibid*.) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded[,] and matters of which judicial notice has been taken." (*Ibid*.) All properly pleaded material facts, and reasonable inferences, must be accepted as true. (*Thomas v. Regents of University of Cal.* (2023) 97 Cal.App.5th 587, 611.) "As a general rule in testing a pleading against a demurrer[,] the facts alleged in the pleading are deemed to be true, however improbable they may be," unless the "complaint contains